

Smt. Shakuntla Devi v. State of U.P. — bill dispute relegated to Clause 5.6

Allahabad High Court · Division Bench · 3 September 2015 · Writ-C No. 49700 of 2015 (All.) · Writ-C No. 49700 of 2015 · **Writ dismissed; consumer relegated to Clause 5.6.**

HEADNOTE

A Division Bench of the Allahabad High Court dismissed a writ petition challenging an electricity consumption bill, holding that a consumer dissatisfied with such a bill has a remedy under Clause 5.6 of the U.P. Electricity Supply Code, 2005, and granting liberty to pursue that remedy.

FACTUAL SUMMARY

Smt. Shakuntla Devi filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and two others, including the electricity corporation, challenging a bill raised for her electricity consumption. Counsel for the petitioner was Rahul Malviya; Sri R.S. Umrao appeared for respondents 2 and 3. The order does not record the bill amount, the period, or whether the dispute concerned a defective meter or ordinary billing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

bill-dispute-relegated-to-clause-5.6

HOLDING

A consumer dissatisfied with a bill raised for electricity consumption has a remedy under Clause 5.6 of the U.P. Electricity Supply Code, 2005; a writ petition challenging such a bill is dismissed with liberty to pursue that remedy. ¶ 1

PRINCIPLE TAGS

meter-dispute-must-exhaust-clause-5.6-before-writ A Division Bench of the Allahabad High Court dismissed a writ petition challenging an electricity consumption bill, holding that a consumer dissatisfied with such a bill has a remedy under Clause 5.6 of the U.P. Electricity Supply Code, 2005, and granting liberty to pursue that remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL

Merits of the bill left to the Clause 5.6 remedy. ¶ 1